

25AVCV01458 25AVCV01458

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-06-25

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Case Number: 25AVCV01458 Hearing Date: June 25, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

KANAISHA EARLINE HARRIS,

Plaintiff,

v.

CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION; ANTELOPE VALLEY HEALTHCARE DISTRICT, a public entity DBA ANTELOPE VALLEY MEDICAL CENTER; COUNTY OF LOS ANGELES; LEANNA LUNDY, an individual; CHRISTINA GALSTIAN, an individual; LT. COUPLAND, first name presently unknown, an individual; and DOES 1 through 150, inclusive,

Defendants.

Case Number 25AVCV01458

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: June 25, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a wrongful death action. Marion James Harris, Sr. (Decedent) was incarcerated in Lancaster, California and was involved in a physical altercation with several correctional officers on August 24, 2025.

On November 4, 2025, Decedent's surviving spouse, Plaintiff Kanaisha Harris (Plaintiff), self-represented, filed her complaint against Defendant California Department of Corrections and Rehabilitation (CDCR), asserting nine causes of action for (1) wrongful death, (2) failure to protect, (3) excessive force, (4) civil rights retaliation, (5) deliberate indifference to serious medical needs, (6) negligence, (7) negligent supervision and failure to train, (8) Bane Act, and (9) interference with familial association. (Compl., p. 8.)

On December 31, 2025, Decedent's minor biological children, M.J.H. and M.H. (Proposed Intervenor) filed a complaint in a separate action (LASC Case No. 25AVCV01734) arising from Decedent's death, against CDCR, Leanna Lundy, Christina Galstian, and DOES 1 through 20, individually and as successors in interest to Decedent, by and through their guardian ad litem Rhonda Stamp. The complaint asserts six causes of action for (1) negligence, (2) negligent training, supervision, and retention, (3) assault, (4) battery, (5) violation of the Bane Act, and (6) failure to obtain or furnish medical care.

On February 17, 2026, Defendants filed a demurrer to Proposed Intervenor's complaint, relying in relevant part on the pendency of the present action commenced by Plaintiff.

On March 13, 2026, Plaintiff filed her First Amended Complaint individually and as successor in interest, which added Leanna Lundy, Christina Galstian, and Does 1 through 150 as defendants. Plaintiff included a cause of action for municipal liability and removed her cause of action for interference with familial association. (FAC, p. 10:2.)

On May 29, 2026, Proposed Intervenor filed their motion for leave to intervene in the present matter.

On June 11, 2026, CDCR filed its opposition.

On June 17, 2026, Proposed Intervenor filed their reply.

II. Legal Standard

Standard for Intervention – An intervention takes place when a nonparty, an intervenor, seeks to become a party to an action or proceeding between other persons by joining a plaintiff in claiming what is sought by the complaint, joining a defendant in resisting the plaintiff's claims, or demanding anything adverse to both a plaintiff and a defendant. (Code Civ. Proc., § 387, subd. (b).)

"A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." (Code Civ. Proc., § 387(c).)

If the nonparty timely files its application, then the court shall permit the nonparty to intervene in the action as long as either of the following conditions is satisfied:

(A) A provision of law confers an unconditional right to intervene.

(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

(Code Civ. Proc., § 387, subd. (d)(1).)

Otherwise, the court may permit the nonparty to intervene in the action, as long as the motion is timely, if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. (Code Civ. Proc., § 387(d)(2).) This section is construed liberally "in favor of intervention." (Simpson Redwood Co. v. State of California (1987) 196 Cal.App.3d 1192, 1200.) "For permissive intervention three factors are paramount: the intervenor must have a direct interest in the lawsuit, the intervenor must not enlarge the issues raised by the original parties[,] and the intervenor must not tread on the rights of the original parties to conduct their own lawsuit." (Kuperstein v. Superior Court (1988) 204 Cal.App.3d 598, 600.)

There is no statutory time limit for filing a motion to intervene. (Noya v. A.W. Coulter Trucking (2006) 143 Cal.App.4th 838, 842.) "[T]he timeliness of a motion to intervene under section 387 should be determined based on the date the proposed interveners knew or should have known their interests in the litigation were not being adequately represented." (Ziani Homeowners Assn. v. Brookfield Ziani LLC (2015) 243 Cal.App.4th 274, 282.) Intervention is possible at any time, even after judgment, if otherwise appropriate. (Mallick v. Superior Court (1979) 89 Cal.App.3d 434, 437.)

If intervention is granted, the intervenor must (1) separately file (a) a complaint-in-intervention, (b) answer-in-intervention, or (c) both and (2) serve all parties. (Code Civ. Proc., § 387, subd. (e).)

III. Discussion

Satisfaction of Procedural Requirements – The Court notes that Proposed Intervenors have complied with the statutory requirements of the Code of Civil Procedure, section 387, as Proposed Intervenors have petitioned the Court with a noticed motion which includes a copy of the proposed complaint in intervention and sets forth the grounds upon which intervention rests.

Timeliness – The Court finds this motion timely. Proposed Intervenors state they were not aware of the present litigation until CDCR filed its demurrer to Proposed Intervenors' separate complaint in February of 2026. The litigation is in the early stages, Defendant does not argue the motion is untimely, and no statutory limit exists as to when a party may request leave to intervene.

Application – Proposed Intervenors request leave to intervene in the present case, as they have a direct and immediate interest that is the subject of this action which will be impaired by its disposition, and Plaintiff cannot adequately represent that interest. (Motion, p. 2:19-22.) Proposed Intervenors note that they filed their own separate civil action for, in part, wrongful death, which CDCR demurred to pursuant to the one action rule, requiring all wrongful death claimants to bring claims in a single action. (Id. at 3:5-8.) Proposed Intervenors claim their interest in the present litigation is direct and immediate, as they are Decedent's minor children whose wrongful death claims cannot be brought in any other action due to the one action rule. (Motion, p. 4:1-4.)

CDCR does not object to intervention as to the wrongful death claim, and concedes that it is mandatory in this instance. (Opp., p. 3:17-21.) However, it argues the Court should limit Proposed Intervenor's right to intervene to the extent that they

seek to intervene in the survival causes of action in this case, because only the successor-in-interest or personal representative of a decedent can assert a survival cause of action. (Opp., p. 4:11-13.)

"The elements of a cause of action for wrongful death are a tort, such as negligence, and resulting death." (Lopez v. City of Los Angeles (2011) 196 Cal.App.4th 675, 685.) The right to bring a cause of action for wrongful death of a person caused by the wrongful act or neglect of another "is limited to those persons identified in the wrongful death statute". (Stennett v. Miller (2019) 34 Cal.App.5th 284, 290.) The statute describes those who have standing to sue for wrongful death to include "any of the following persons or by the decedent's personal representative on their behalf: (a) The decedent's surviving spouse, domestic partner, children, and issue of deceased children, ..." (Code Civ. Proc., § 377.60.)

The court in Gonzales v. Southern Cal Edison Co. explained that "[g]enerally, there may be only a single action for wrongful death, in which all heirs must join. There cannot be a series of such suits by individual heirs... This is the so-called one action rule. (Gonzales v. Southern Cal. Edison Co. (1999) 77 Cal.App.4th 485, 489.) "Our case law recognizes that the purpose of the 'one-action' rule is to provide defendants the ability to resolve a cause of action for wrongful death in one litigation subject to one judgment for lump sum damages to be shared by all heirs. Allowing an heir to participate after satisfying the statutory requirements for mandatory intervention does not do violence to the purpose of the judicially created 'one action' rule—defendants will still be defending a single cause of action for wrongful action in one litigation and will still be subject to one judgment binding against all parties entitled to recover damages under the statute." (King v. Pacific Gas & Electric Co. (2022) 82 Cal.App.5th 440, 453.)

Accordingly, the Court grants the motion to intervene as to the wrongful death action.

As to survival causes of action, California Code of Civil Procedure section 377.30 provides:

A cause of action that survives the death of the person entitled to commence an action or proceeding passes to the decedent's successor in interest, subject to Chapter 1 (commencing with Section 7000) of Part 1 of Division 7 of the Probate Code, and an action may be commenced by the decedent's personal representative or, if none, by the decedent's successor in interest

The Proposed Intervenor is not asserting that they are the personal representatives of Decedent, or that Decedent left a will. The Court thus looks to the Probate Code to determine if Proposed Intervenor is successors in interest who may maintain a survivors action. Probate Code Section 6401 provides as follows for intestate succession:

(a) As to community property, the intestate share of the surviving spouse is the one-half of the community property that belongs to the decedent under Section 100.

(b) As to quasi-community property, the intestate share of the surviving spouse is the one-half of the quasi-community property that belongs to the decedent under Section 101.

(c) As to separate property, the intestate share of the surviving spouse is as follows:

(1) The entire intestate estate if the decedent did not leave any surviving issue, parent, brother, sister, or issue of a deceased brother or sister.

(2) One-half of the intestate estate in the following cases:

(A) Where the decedent leaves only one child or the issue of one deceased child.

(B) Where the decedent leaves no issue, but leaves a parent or parents or their issue or the issue of either of them.

(3) One-third of the intestate estate in the following cases:

(A) Where the decedent leaves more than one child.

The question thus is whether Decedent's causes of action were community property – in which case the survivor's action is vested entirely with Ms. Harris, or Decedent's separate property, in which case under Probate Code Section 6401(c)(3)(A), the Proposed Intervenor's are successors-in-interest to 2/3 of Decedent's causes of action.

Under Family Law Code Section 780, a cause of action that arises during a marriage is, with notable exceptions, community property. Family Law Code Section 781 however provides that a cause of action is the separate property of the injured spouse if "the cause of action for the damages arose as follows: . . . (2) While the injured spouse is living separate from the other spouse."

There is no dispute here that Decedent was living separately from Ms. Harris at the time his injuries arose. Accordingly, the Proposed Intervenor's may be considered, based on the allegations before the Court presently, to be successors in interest under who may maintain a cause of action under Code of Civil Procedure Section 377.30.

Finally, the absence to date of affidavit does not bear weight as to whether Proposed Intervenor's may file a complaint in intervention in the present matter. As the court in *Aghaian v. Minassian* states, section 377.32 "does not require that the affidavit be filed as a condition precedent to commencing or continuing the act." (*Aghaian v. Minassian* (2021) 64 Cal.App.5th 603, 614.) Although the affidavit is a requirement Proposed Intervenor's must comply with, it is not a prerequisite deeming the pleadings insufficient.

Thus, the Court finds that the Proposed Intervenor's may also intervene in the survival actions.

IV. Conclusion

Proposed Intervenor's' motion for leave to intervene is GRANTED.